

	2018-01021840	Defendants Precision Airparts Support Services, Inc., Tony Ordaz, and Ira Smith’s (collectively, defendants) motion to tax plaintiff Linda Clark’s (plaintiff) “Memorandum of Costs on Appeal No. 1” is GRANTED as to the \$76,594.50 in attorney fees claimed under item 9 only, and otherwise DENIED. To be clear, this first motion to tax costs (ROA No. 819) is directed at plaintiff’s 11/14/25 memorandum of costs on appeal pertaining to the appeal of the judgment, which the parties refer to as the “Memorandum of Costs on Appeal No. 1” (ROA No. 789). Defendant has challenged items 2, 3, and 9 of plaintiff’s Memorandum of Costs on Appeal No. 1. Item 2 and 3, which seek \$3,248 in clerk’s transcript preparation costs and \$2,500 in reporter’s transcript preparation costs, appear facially proper. (See Cal. Rules of Court, rule 8.278(d)(1)(B); see also ROA Nos. 694 [notice of clerk’s transcript fees], 697 [notice to reporter to prepare reporter’s transcript on appeal], 698 [designation of record on appeal].) The verified costs memorandum therefore constitutes prima facie evidence of their reasonableness. (<i>Nelson v. Anderson</i> (1999) 72 Cal.App.4th 111, 131.) Defendants have entirely failed to meet their burden to demonstrate otherwise. (See <i>ibid.</i> [burden].) In any event, plaintiff has adequately substantiated these costs. (Duffy Decl. ¶¶ 5-6, Ex. 4.) Item 9 seeks \$76,594.50 in attorney fees pursuant to contract. (See Duffy Decl. ¶ 4, Ex. 3; see also ROA No. 788 [motion for attorney fees on appeal pursuant to contract].) Contractual attorney fees can only be claimed by noticed motion, and not by the filing of a memorandum of costs. (<i>Lee v. Wells Fargo Bank, N.A.</i> (2001) 88 Cal.App.4th 1187, 1198; see Cal. Rules of Court, rule 3.1702; see also <i>Wood v. Santa Monica Escrow Co.</i> (2009) 176 Cal.App.4th 802, 807 [the recovery of costs on appeal and the right to attorney fees are governed by separate rules; “an award of costs on appeal does not determine, or even indicate, who is the prevailing party in the lawsuit for the purpose of awarding fees”]; <i>Butler-Rupp v. Lourdeaux</i> (2007) 154 Cal.App.4th 918, 928; Cal. Rules of Court, rule 8.278(d)(2).) As plaintiff acknowledges in her opposition, the court has already determined that plaintiff’s request for attorney fees at this stage in litigation is premature. (See Duffy Decl. ¶ 4, Ex. 3; ROA No. 866 [4/23/26 minute order].) <i>Motion to Tax Costs on Appeal (ROA No. 823)</i>
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		Defendants’ motion to tax plaintiff’s “Memorandum of Costs No. 2” is GRANTED. This second motion to tax costs (ROA No. 823) is directed at plaintiff’s 11/14/25 memorandum of costs on appeal pertaining to her appeal of the postjudgment costs award, which the parties refer to as the “Memorandum of Costs on Appeal No. 2” (ROA No. 790). The only item that defendants challenge in plaintiff’s Memorandum of Costs on Appeal No. 2 is item 9, which seeks \$76,594.50 in contractual attorney fees. (See Duffy Decl. ¶ 4, Ex. 3; see also ROA No. 788 [motion for attorney fees on appeal pursuant to contract].) As stated above, contractual attorney fees can only be claimed by noticed motion, and not by the filing of a memorandum of costs. (<i>Lee v. Wells Fargo Bank, N.A.</i>, <i>supra</i>, 88 Cal.App.4th at p. 1198; see Cal. Rules of Court, rule 3.1702; see also <i>Wood v. Santa Monica Escrow Co.</i>, <i>supra</i>, 176 Cal.App.4th at p. 807 [the recovery of costs on appeal and the right to attorney fees are governed by separate rules; “an award of costs on appeal does not determine, or even indicate, who is the prevailing party in the lawsuit for the purpose of awarding fees”]; <i>Butler-Rupp v. Lourdeaux</i>, <i>supra</i>, 154 Cal.App.4th at p. 928; Cal. Rules of Court, rule 8.278(d)(2).) As plaintiff acknowledges in her opposition, the court has already determined that plaintiff’s request for attorney fees at this stage in litigation is premature. (See Duffy Decl. ¶ 4, Ex. 3; ROA No. 866 [4/23/26 minute order].) Defendants shall give notice of all of the above.
10	U.S. Bank National Association vs. Pacific Life Insurance Company 2023-01330408	Motion to Seal Defendant Pacific Life Insurance Company’s Motion to Seal is GRANTED. (Cal. Rules of Court, Rule 2.551, subd. (b).) The Court finds that Moving Party has made a sufficient factual showing under Cal. Rules of Court, Rule 2.550, subd. (d) to justify sealing: (1) Moving Party has shown that the records they seek to seal consist of, or directly reference, sensitive proprietary business information and/or private information concerning insurance policies held by non-parties to this litigation. (2) Moving Party has shown an overriding interest that supports sealing of records (see <i>NBC Subsidiary (KNBC-TV), Inc. v. Superior Court</i> (1999) 20 Cal.4th 1178, 1222, fn. 46 [recognizing inter alia an overriding interest in